



Notification Waiver Determination

Cement Australia – Global Manufacturing Group

Acquisition	DGH Design and Fabrication Services Pty Ltd (DGH), a wholly owned subsidiary of Cement Australia Holdings Pty Limited (Cement Australia), applied for a notification waiver in respect of its proposed acquisition of 100% of the Gladstone business assets of Aylward Dowling And Wall Pty Ltd, trading as Global Manufacturing Group (GMG), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	11 May 2026

Parties to the Acquisition	The acquirer, DGH, is a fabrication and metal engineering company providing metal engineering, drafting, fabrication, fitting, machining, blast, and painting services, with branches in Mackay, Emerald, and Townsville. It does not have a branch in the Gladstone region but supplies Cement Australia in Gladstone from its Mackay branch. The target, GMG, is a fabrication and metal engineering company providing steel fabrication and coating services for all types of metal across the industrial manufacturing industry, with workshops in Maryborough and Gladstone. The Acquisition relates only to GMG's workshop in Gladstone. The parties both supply metal fabrication and engineering services, including coating services, in the Gladstone region.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is small horizontal overlap between the parties in the supply of metal fabrication and engineering services in the Gladstone region, and their combined share of supply is small - while there is a vertical relationship between the parties and DGH's parent company, Cement Australia, there appears to be low risk of vertical foreclosure arising from the Acquisition due to the presence of alternative suppliers and

	customers of metal fabrication and engineering services, including in Gladstone. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	--

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**